

to include disputed claims for tort damages particularly when formal probate administration has commenced.

CFPA failed to file a timely and proper creditor's claim to the administrator of the estate. As such, its action is now barred. Plaintiff has failed to establish that Probate Code section 13550 *et seq.*, provides a basis for Plaintiff to continue this pending action against Decedent's surviving spouse. The Court likewise is not persuaded that there is a reasonable possibility the defect at issue can be remedied by amendment.

Defendant's motion for judgment on the pleadings is granted without leave to amend.

5. CU0002229 Krystal Ukoh, et al. vs. State of California, et al.

Plaintiffs' motion to compel further responses to request for production of documents is denied. However, Defendant Caltrans shall amend its responses to be code-compliant as described in the Joint Status Report within ten (10) days.

Legal Standard

An agreement to comply with a document demand must state whether the responding party will be complying "in whole or in part." Code Civ. Proc., § 2031.220. In addition, the response must indicate whether any documents are being withheld based on an asserted objection. Code Civ. Proc., § 2031.240(b). "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand." Code Civ. Proc., § 2031.230. "This statement shall also [among other things,] specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party." *Ibid.*

On receipt of the response to a document demand, the demanding party may move to compel a further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. Code Civ. Proc., § 2031.310(a).

The motion must set forth specific facts showing good cause justifying the discovery, and it must be accompanied by a separate statement. Code Civ. Proc., § 2031.310(b); Cal. Rules of Court, rule 3.1345. Absent a claim of privilege or attorney work product, the burden of showing good cause may be met by a fact-specific showing of relevance. Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 8:1495.6. To establish "good cause," the burden is on the moving party to show both: relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). *Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117. "If 'good cause' is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure." Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 8:1496.

Analysis

Request for Production No. 1: Plaintiffs state in the Joint Status Report the issue is resolved subject to the reservation of Plaintiffs' right to seek an order compelling production of additional design or discretionary-approval documents should deposition testimony establish that such documents exist. This request, thus, is denied, as moot.

RFP No. 20: Plaintiffs argue the geographic scope produced by Defendant is too narrow, and Defendant should be compelled to produce a total range of 2.25 miles. The Court disagrees.

Plaintiffs argue the range includes intersections that have been modified within the last ten years, and thus may have had a similar configuration to the accident location in the past. In opposition, Caltrans submits a declaration stating the extended area requested "are not the same as, nor substantially similar to, the subject location.... These intersections do not exhibit roadway features, lane configurations, or directional orientation similar to those of the subject location, and therefore are not substantially similar." Wong Decl., ¶ 7. In support of its request, Plaintiff argues Caltrans "spent approximately \$113.85 million on corridor improvements". Pltf. Am. Sept. Stmt., 3:19-20. However, Plaintiffs only argue, without proof, the extended range may have included substantially similar areas in the past. On balance, Plaintiffs have failed to persuasively show that the request is reasonably calculated to lead to the discovery of admissible evidence. No good cause has been established to justify further discovery.

RFP No. 25: Plaintiffs again argue Caltrans limitation of the geographic scope is too narrow, and Caltrans should be compelled to produce a report that covers the requested range. The Court disagrees.

As discussed above, Plaintiffs have failed to show the request is reasonably calculated to lead to the discovery of admissible evidence. As such, the request for further production is denied.

6. CU0002301 Jill Wichmann vs. Granite Wellness Centers

One of the parties apparently reserved this date for the filing of a motion; none was filed. This matter is removed from calendar.

7. CU0002546 Joann Pennington et al vs. Tahoe Forest Hospital District, et al.

Petitioners' petition for relief from Government Code section 945.4 pursuant to Government Code Section 946.6 is denied.

"A copy of [a] petition [under Code of Civil Procedure section 946.6] and a written notice of the time and place of hearing shall be served before the hearing as prescribed by subdivision (b) of Section 1005 of the Code of Civil Procedure on ... the clerk or secretary or board of the local public entity, if the respondent is a local public entity...." Gov. Code, § 946.6(d)(1). In addition, service of the petition must be "effected in the same manner as service of summons in order to give the court jurisdiction to enter an order against the public entity." *Thierfeldt v. Marin Hosp. Dist.* (1973) 35 Cal.App.3d 186, 200.